Syllabus

CASE *v.* MONTANA

CERTIORARI TO THE SUPREME COURT OF MONTANA

No. 24–624. Argued October 15, 2025—Decided January 14, 2026

In *Brigham City* v. *Stuart*, 547 U. S. 398, 400, the Court held that the Fourth Amendment allows police officers to enter a home without a warrant if they have an "objectively reasonable basis for believing" that someone inside needs emergency assistance. In this case, Montana police officers responded to the home of petitioner William Case after his ex-girlfriend called 9–1–1 to report that he was threatening suicide and may have shot himself. The officers knocked on the doors and yelled into an open window, but got no response. They could see an empty handgun holster and something that looked like a suicide note inside, and they ultimately decided to enter the home to render emergency aid. When one officer approached a bedroom closet in which Case was hiding, Case threw open the closet curtain while holding an object that looked like a gun. Fearing that he was about to be shot, the officer shot and injured Case. An ambulance was called to take Case to the hospital, and officers found a handgun next to where Case had stood.

Page Proof Subject to Publication

Case was charged with assaulting a police officer. Case moved to suppress all evidence obtained from the home entry, arguing that the police violated the Fourth Amendment by entering without a warrant. The trial court denied the motion, and a jury found Case guilty. A divided Montana Supreme Court upheld the officers' entry as lawful under Montana's caretaker doctrine, rejecting the contention that an officer must have probable cause to believe that an occupant needs emergency aid.

Held: *Brigham City*'s objective reasonableness standard for warrantless home entries to render emergency aid applies without further gloss and was satisfied in this case. Pp. 113–119.

(a) "[S]earches and seizures inside a home without a warrant are presumptively unreasonable" under the Fourth Amendment. *Brigham City*, 547 U. S., at 403. But the "warrant requirement is subject to certain exceptions," *Lange* v. *California*, 594 U. S. 295, 301, including the need to render emergency assistance. The Court first approved a warrantless home entry to render emergency assistance in *Brigham City*, holding that officers may enter when they have "an objectively reasonable basis for believing that an occupant is seriously injured or imminently threatened with such injury." 547 U. S., at 400.

Syllabus

The Montana Supreme Court's opinion below strayed from that rule. Most important, the emergency-aid test incorporated in Montana's caretaker doctrine evokes the Fourth Amendment standard of "reasonable suspicion" that applies to relatively non-invasive street stops. But *Brigham City* adopted a different standard for home entries.

Case now urges the Court to understand *Brigham City* as sounding in probable cause, but the Court declines to put a new probable-cause spin onto the emergency-aid standard. Probable cause is "peculiarly related to criminal investigations," *Treasury Employees* v. *Von Raab*, 489 U. S. 656, 667, and that body of law would fit awkwardly, if at all, in the non-criminal, non-investigatory setting at issue here. Rather than strain to relate probable-cause decisions to emergency-aid situations, *Brigham City* asked simply whether an officer had "an objectively reasonable basis for believing" that entry was direly needed to prevent or deal with serious harm. 547 U. S., at 400. Courts should assess the reasonableness of an emergency-aid entry on its own terms, rather than through the lens generally used to consider investigative activity. Pp. 113–117.

(b) The officers here had an "objectively reasonable basis for believing" that their entry was needed to prevent Case from ending his life. The information the officers obtained from Case's ex-girlfriend, combined with their observations at the scene, suggested that Case may already have shot himself or would do so absent intervention. The officers' decision to enter his home to prevent that result was reasonable. Accordingly, the Court affirms the judgment (even though not all the reasoning) of the Montana Supreme Court. Pp. 117–119.

417 Mont. 354, 553 P. 3d 985, affirmed.

KAGAN, J., delivered the opinion for a unanimous Court. SOTOMAYOR, J., *post*, p. 119, and GORSUCH, J., *post*, p. 124, filed concurring opinions.

Fred A. Rowley, Jr., argued the cause for petitioner. With him on the briefs were *Mark R. Yohalem*, *John B. Kenney*, *Eric O. Bravin*, *Elizabeth Nielson*, *Christopher R. Betchie*, *Nathan D. Ellis*, and *Kelsey B. Catina*.

Christian B. Corrigan, Solicitor General of Montana, argued the cause for respondent. With him on the brief were *Austin M. Knudsen*, Attorney General of Montana, and *Tyler R. Green*.

Zoe A. Jacoby argued the cause for the United States as *amicus curiae* supporting respondent. With her on the brief were *Solicitor General Sauer*, *Acting Assistant Attor-*

ney General Galeotti, *Deputy Solicitor General Feigin*, and *Jenny C. Ellickson*.*

JUSTICE KAGAN delivered the opinion of the Court.

In *Brigham City* v. *Stuart*, 547 U. S. 398, 400 (2006), this Court held that police officers may enter a home without

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*Briefs of *amici curiae* urging reversal were filed for America's Future et al. by *William J. Olson* and *Jeremiah L. Morgan*; for the Cato Institute et al. by *Matthew P. Cavedon* and *Brent Skorup*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *Brian R. Frazelle*; for the Montana Association of Criminal Defense Lawyers by *Mark S. Davies* and *David F. Ness*; for the National Association of Criminal Defense Lawyers et al. by *Daniel B. Levin*, *Jeffrey L. Fisher*, *Cecillia D. Wang*, *Yasmin Cader*, and *Brandon Buskey*; and for the Project for Privacy & Surveillance Accountability et al. by *Gene C. Schaerr*, *Erik S. Jaffe*, and *Mahesha P. Subbaraman*.

Briefs of *amici curiae* urging affirmance were filed for the State of Michigan et al. by *Dana Nessel*, Attorney General of Michigan, *Ann M. Sherman*, Solicitor General, *B. Eric Restuccia*, Deputy Solicitor General, and *Timothy A. Baughman*, Special Assistant Attorney General, and by the Attorneys General for their respective jurisdictions as follows: *Steve Marshall* of Alabama, *Stephen J. Cox* of Alaska, *Kris Mayes* of Arizona, *Tim Griffin* of Arkansas, *Patrick J. Griffin* of Connecticut, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *James Uthmeier* of Florida, *Chris Carr* of Georgia, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Lynn Fitch* of Mississippi, *Catherine L. Hanaway* of Missouri, *Michael T. Hilgers* of Nebraska, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Jeff Jackson* of North Carolina, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Dan Rayfield* of Oregon, *Alan Wilson* of South Carolina, *Marty J. Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, *Derek Brown* of Utah, *Jason S. Miyares* of Virginia, *Nicholas W. Brown* of Washington, and *John B. McCuskey* of West Virginia; for the Local Government Legal Center et al. by *Nadia A. Sarkis* and *James R. Nikraftar*; and for Michael J. Z. Mannheimer by *Richard A. Simpson*, *Michael J. Z. Mannheimer*, *pro se*, *F. Andrew Hessick*, and *Elizabeth Guild Simpson*.

Briefs of *amici curiae* were filed for the American Psychiatric Association et al. by *Aaron M. Panner*; for the LONANG Institute by *Kerry Lee Morgan* and *Randall A. Pentiuk*; and for The Rutherford Institute by *Michael J. Lockerby* and *John W. Whitehead*.

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